

BEFORE  
THE FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-19

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PELOTON INTERACTIVE, INC.  
*Complainant*

vs.

FLEXPORT INTERNATIONAL LLC  
*Respondent*

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**COMPLAINANT’S MOTION FOR MODIFICATION  
OF THE DOCUMENT PRODUCTION COMPLETION  
DEADLINE IN THE SCHEDULING ORDER**

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Complainant Peloton Interactive, Inc. (“Peloton”) respectfully requests a modification of the December 16, 2024 document production deadline in the Scheduling Order dated November 8, 2024 (“Scheduling Order”) to permit one additional week to complete final document production, by December 23, 2024.

**I. PRELIMINARY STATEMENT**

The Scheduling Order set Wednesday, November 13, 2024 as the date for exchange of initial discovery requests, and Monday, December 16, 2024, as the deadline for “Complete Document Production.” The Scheduling Order acknowledged delays related to the Motion to Dismiss, and noted that there was insufficient information at that time on the extent of discovery to warrant additional time for discovery, but noted that “[a] motion which sets forth good cause to extend the schedule—such as voluminous (defined) or technically challenging document production, or a substantial number of depositions—will be considered if the parties are unable to meet the deadlines above.”

Peloton has in good faith expended significant efforts and resources to be in a position to complete its document review and production by December 16, 2024, and had been targeting and planning to do so. However, the scope of potentially responsive documents and the work needed to appropriately review the documents for responsiveness and privilege, has been extensive. Peloton has been devoting substantial resources to the tasks, and has increased those resources, while at the same time having to prepare its opposition filed today to the surprise dispositive motion that Flexport filed the day before Thanksgiving. Despite its efforts, Peloton has reached a point that few days remaining before the 16th are not sufficient for it to produce *all* responsive documents by the current December 16, 2024 deadline.

To be clear, Peloton is prepared to produce a significant volume of responsive documents on December 16, 2024—Peloton’s concern is with the current deadline to complete the *entirety* of its document production by that date. For these reasons, and as more fully explained below, Peloton is requesting a modification of the Scheduling Order (this “Motion”) to allow an additional week, to December 23, 2024, to complete production of documents.

## **II. MEET AND CONFER CERTIFICATION**

Pursuant to 46 C.F.R. §§ 502.71(a), on December 11 and 12, 2024, counsel for Peloton attempted to confer with Flexport. Flexport declined to hold a meet and confer on December 12, and after a number of email exchanges, responded by email that its position was that there was no good faith basis for the motion and no good faith effort to confer on the motion.

The Particular urgency of this Motion was elevated when, in the exchange of communications seeking to meet and confer with Flexport, it became apparent that counsel for Flexport was of the view the document production was due on December 13, 2024 (*i.e.* tomorrow) not December 16, 2024 as set in the Scheduling Order. Although Flexport’s counsel

declined to meet and confer, our understanding is that Flexport's counsel is relying on the generally applicable 30 day response period for discovery responses exchanged on November 13, 2024, not on the dates in the Scheduling Order. Peloton's understanding is that the dates of exchange for document requests and date for completion of document production set in the Scheduling Order were to be followed pursuant to 46 CFR § 502.146.

We directed Flexport counsel's attention to Rule 146, which generally provides for responses within thirty days after being served, but also provide that "[a] shorter or longer time *may be ... ordered by the presiding officer.*" (emphasis added). We explained that the Scheduling Order was an order of the Presiding Officer and that therefore we understood that the December 16th date was the applicable date for completion of document production. Counsel for Flexport did not agree to meet and confer and did not reply further to Peloton's emails on this matter, including Peloton extending its understanding that Peloton did not expect Flexport to produce documents on December 13, 2024.

### **ARGUMENT**

#### **1. Peloton Has Expended Considerable Efforts to Meet the Production Deadline but the Volume and Complexity of Document Retrieval and Review Warrants a Modest Modification of the Scheduling Order**

Peloton has approached the Production Deadline in good faith and with efficiency, but the actual process of both the retrieval of the documents and subsequent review has taken more time than available under the Scheduling Order for Peloton to complete the production requested by Flexport. The following summary of Peloton's efforts to respond to Flexport's requests, and steps taken to meet the Production Deadline, demonstrates the significant burdens and good faith efforts that Peloton has been undertaking:

First, collection of documents responsive to Flexport's requests has been a considerable task. Peloton, its outside counsel, and its eDiscovery vendor, as well as additional individuals

from the Peloton legal team and employees in its Transportation & Logistics Department, were involved in document collection efforts across multiple data sources, business segments, and custodians. Peloton engaged an eDiscovery vendor with experience with Peloton for initial review documents utilizing the Relativity platform. However, certain types of records relevant to this matter, such as third-party invoice-type records, needed to be manually and individually collected. That collection process was particularly extensive due to the number of invoices issued in this action, which Flexport required Peloton to produce, despite the fact that Flexport should have each and every invoice it issued to Peloton in connection with demurrage and detention charges amounting to over \$30 million.

Peloton's vendor assembled together a review team ("Discovery Review Team") of initially *twenty-five individuals*, which was increased to *twenty-nine* after the volume and scope of the data continued to expand, and Peloton's outside counsel team involved with the document review process included six attorneys and an eDiscovery specialist. Declaration of Allison N. Skopec ("Skopec Decl.") at ¶ 4. The collective effort was so extensive in light of Peloton targeting a very ambitious December 16, 2024 Production Deadline.

On November 20, 2024, Peloton outside counsel attempted to contact Flexport counsel to address issues with Flexport's Initial Disclosures. Given the tight timeframe with the Production Deadline, Peloton outside counsel prepared an ESI protocol, which included proposed search terms and the use of AI and/or search terms in production to best filter relevant results. Skopec Decl. at ¶ 5. However, Flexport declined to respond to the request to address a joint ESI protocol. *Id.*

Peloton outside counsel, Peloton, and the eDiscovery Review Team took various steps to address and manage an appropriate and efficient collection and conducted the daily meetings

on issues, status and progress. Skopec Decl. at ¶ 6. 3,042,019 documents were collected for potential review, 2,765,051 documents of which remained after de-duping. Skopec Decl. at ¶ 7. Extensive relevance filtering, searching, and testing resulted in a first set of 38,462 documents for detailed counsel review. *Id.* The eDiscovery team immediately commenced review on Monday, December 2, 2024, with the goal of completing review by Friday, December 12, 2024 in order to meet the Production Deadline. Skopec Decl. at ¶ 8. In its first full day, 4,864 documents were reviewed. Skopec Decl. at ¶ 9. Review continued on each subsequent day with the rate of review increasing to some extent as reviewers became more familiar with the materials. *Id.*

The eDiscovery Review Team continued its review on December 4 and 5, and the daily meeting calls continued. Peloton outside counsel also added two reviewers to conduct a final QC of the eDiscovery Review Team work, both initial and QC. Skopec Decl. at ¶ 10. Peloton's outside counsel QC began daily on December 5, 2024 with a team of reviewers who were able processing about five hundred QC level documents daily. *Id.* A meaningful portion of the documents reviewed required corrections. *Id.*

On December 6, 2024, four additional reviewers were added to the eDiscovery Review Team in order to increase production to meet the deadline. Skopec Decl. at ¶ 11. However, additional documents from final collection efforts were added to the review set and as a result the review population increased further. *Id.* During review meeting, the eDiscovery Review Team expected to complete its review by Wednesday, December 11th, and Peloton outside counsel were planning to conduct final QC by end of day Friday, December 13th. Skopec Decl. at ¶ 12. Because of the nature of the production and its size, the eDiscovery vendor requires forty-eight hours to process and image the production, and therefore required completion of

review by December 13th in order to meet the Monday, December 16 Production Deadline. *Id.* The eDiscovery Review Team continued their review work through the weekend on December 7 and 8, 2024. *Id.*

On December 11, 2024, eDiscovery Review Team completed its review of a final set of 17,000 documents, which were sent to Peloton outside counsel to conduct QC (totaling approximately 33,350 documents marked responsive by the eDiscovery Review Team for Peloton outside counsel review). Skopec Decl. at ¶ 13. It became increasingly apparent that the remaining backlog of documents for outside counsel review was too large for the time remaining. *Id.* Many of the documents required were flagged for extra review, requiring more time and attention with quality control review. *Id.*

All told, Peloton had about twelve days, including weekend days, to undertake its review of 33,350 documents—documents that were in many respects technically complicated. Skopec Decl. at ¶ 14. While Peloton is prepared to produce available documents on December 16, 2024, despite its best efforts, it does not have the ability to produce all of the documents before that deadline. *Id.* Therefore, Peloton is requesting this modification to finish its production by December 23, 2024.

## **2. Peloton will Meet its Obligations for all other Concurrent Deadlines**

In addition to Peloton's good faith efforts to meet the Production Deadline, Peloton is also balancing concurrent deadlines, all of which Peloton will timely meet, that have also required significant time and investment of resources. These deadlines include:

- **December 12, 2024:** Peloton's Opposition to Flexport's surprise Motion for Judgment on the Pleadings, filed the day before Thanksgiving, and in the middle of this crucial document production period;

- **December 13, 2024:** Peloton’s Responses to Interrogatories;
- **December 13, 2024:** Peloton’s Written Responses to Requests for Production;
- **December 16, 2024:** Peloton’s Mediation Statement to the Federal Maritime Commission’s Consumer Affairs and Dispute Resolution Services (“CADRS”) for upcoming mediation;
- **December 16, 2024:** Producing an initial tranche of materials that are ready, pending Flexport’s response to Peloton’s proposed Stipulation of Confidentiality (circulated to Flexport on December 12, 2024); and
- **December 19, 2024:** Preparation and attendance at CADRS mediation.

As such, a reasonable modification of the Production Deadline to December 23, 2024 in this matter is warranted, and this Motion should be granted.

### **III. CONCLUSION**

For the foregoing reasons, Peloton respectfully submits that good cause exists for the one week modification of the “all documents” deadline. Once the parties produce their respective documents, and consider the volume of discovery and related work, they can then address the impact on any of the other deadlines in the Scheduling Order. At present, Peloton’s only request concerns the modification of the December 16, 2024, deadline so that the production can be completed on December 23, 2024.

Dated: December 12, 2024

Respectfully Submitted,

**HOLLAND & KNIGHT LLP**

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## **CERTIFICATE OF SERVICE**

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: December 12, 2024

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